

**FOR NEW LICENSES AND TRANSFER
LICENSE AND/OR PERMIT APPLICATION
FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY**

To be completed by the City, Town or County Clerk:

Date Filed: 11/2/12 1039303

Basic Fee:	Annual Fee	Prorated Fee
Add'l Dispensing Room Fee:	\$ <u>10500.00</u>	\$
Transfer Fee:	\$	\$
Total License Fee Collected	\$ <u>10500.00</u>	\$
Publishing Fee Collect:	\$ <u>100.00</u>	\$

Required Attachments Received: Yes ☒

Advertising Dates(4): Nov. 9, 16, 23, 30, 2012

Hearing Date: Dec. 10 / 2012

Local Licensing Number: 5

For the license term: upon issuance
Month Day Year

Through: March 31 / 2013
Month Day Year

A copy must be immediately forwarded to:
State of Wyoming Liquor Division
1520 E 5th Street
Cheyenne WY 82002-0110

Formerly Held by: _____

Applicant: THE SUITE LLC

Trade Name (dba): THE SUITE

Premise Address: 1901 CENTRAL AVE
Number & Street

CHEYENNE WY 82001 LABRAM
City State Zip County

Mailing Address: 115 W 15TH ST
Number & Street or P.O. Box

CHEYENNE WY 82001
City State Zip

Business Telephone Number: (307) 637-1301

Fax Number: ()

E-Mail Address: SUITECHEYENNE@GMAIL.COM

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

FILING FOR ☒ NEW ☐ TRANSFER LOCATION ☐ TRANSFER OWNERSHIP	TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE) ☐ RETAIL LIQUOR LICENSE ☐ on-premise only ☐ off-premise only ☐ combination on/off premise ☐ RESTAURANT LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE ☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB ☐ MICROBREWERY ☒ WINERY ☒ BAR AND GRILL ☐ LOCATED WITHIN 5 MILES OF CITY (County License only)	To Assist the Liquor Division with scheduling inspections: DO YOU OPERATE? ☒ FULL TIME (e.g. Jan through Dec) ☐ SEASONAL/PART-TIME (specify months of operation) from <u>Jan</u> to <u>Dec</u> DAYS OF WEEK (e.g. Mon through Sat) <u>TUES TO SAT</u> HOURS OF OPERATION (e.g. 10a - 2a) <u>3 P to 1 AM</u>
FILING IN (CHOOSE ONLY ONE) ☒ CITY OF <u>Cheyenne</u> ☐ COUNTY OF _____		
FILING AS (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☐ PARTNERSHIP ☐ CORPORATION ☐ LTD PARTNERSHIP ☐ ASSOCIATION ☐ ORGANIZATION ☒ LLC ☐ LLP		

1. Location of License:

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10x12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: If **Winery** or **Microbrewery**, also list manufacturing facility. W.S. 12-4-102(a)(i): (Please submit a drawing of dispensing room)

17x12' room on south side of building

(b) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

(c) Provide the legal description and the zoning of the site where the applicant will conduct business:

All of lots 5, 6, 7 Block 285 (CBD)

2. Do you W.S. 12-4-103 (a) (iii):

- (1) **OWN** the building in which sales room is located?
 (2) **LEASE** the building in which sales room is located?

☐ YES (own)
☒ YES (lease)

(A) **DATE** lease expires Oct 1 2022 located on page 1 paragraph 4 of lease document.

(B) Provision for **SALE** of alcoholic or malt beverages located on page 1 paragraph 8 of lease.

NOTE: Attach a true copy of the lease to application. Lease **MUST** contain provision for **SALE OF ALCOHOLIC or MALT BEVERAGES** and be valid **THROUGH** the **TERM OF THE LICENSE** W.S. 12-4-103(a)(iii).

- 3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business?** ☐ YES ☒ NO

4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403

- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith:

5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO

If "YES", explain: _____

6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO

7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b):

8. (a) Have you submitted a valid food service permit upon application? ☒ YES ☐ NO
W.S. 12-4-407(a) W.S. 12-4-413(a)
- (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☒ NO ☐ N/A

RESORT LICENSE: Complete questions 9(a) through 9(c):

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11:

10. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO

If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail
☒ Restaurant ☐ Resort ☐ Bar & Grill:

11. (a) Do you self distribute your products? ☐ YES ☐ NO
- (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☐ NO

ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:

12. **FRATERNAL CLUBS** W.S. 12-1-101(a)(iii)(B)

- (a) The name and address of the grand lodge or national organization is: _____
- (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
- (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

13. **VETERANS CLUBS** W.S. 12-1-101(a)(iii)(A):

- (a) The name and address of the National Veterans organization is: _____
- (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
- (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?
(THE PETITION MUST BE ATTACHED TO APPLICATION) ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

- 16. (a) If applicant is an Individual or Partnership:** State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership.

If the application is for a Club: State the name, date of birth and residence of each officer.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
						YES ☐ NO ☐	YES ☐ NO ☐
SHAD DRY	11-19	7513 JACOB PL	307-680			YES ☐ NO ☒	YES ☐ NO ☒
GRIFIN	1974	CHESTER, WY 82009	307-418	10	75	YES ☐ NO ☒	YES ☐ NO ☒
PAVE BOG	12-23	1502 SUNDY HILL	307-421			YES ☐ NO ☒	YES ☐ NO ☒
SIFE	1970	CHESTER, WY 82001	9079	2	25	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)

SS.

COUNTY OF LARAMIE

Before Me, Karen Gastineau, (specify)
(Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for

LARAMIE

County, State of Wyoming, personally appeared

Shad Griffith; David J. E
(Insert Names)

name he/she being first duly sworn

by me upon his oath, says that the facts alleged in the foregoing instrument are true.

(Seal)

My Commission expires: May 24, 2016

1. [Signature]
2. [Signature]
3. _____
4. _____

Witness my hand and official seal:

Karen J. Gastineau
(Notary Public or other officer authorized to administer oaths)

Title NOTARY PUBLICDated: November 2, 2012**REQUIRED ATTACHMENTS:**

- (a) Attach any lease agreements W.S. 12-4-103 (a) (iii).
- (b) If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- (c) A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (v).
- (d) Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- (e) Include a drawing of the dispensing room W.S. 12-5-201 (a).
- (f) Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- (g) If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for four (4) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Accl.:		



The Suite
Shad Griffith
1901 Central Ave
Cheyenne, WY 82001
11/2/2012

Rick Kaysen
Mayor of Cheyenne
City of Cheyenne
2101 O' Neil Ave
Cheyenne, WY 82001

Dear Rick Kaysen:

Thank you for taking the time to review the application submitted by The Suite for a pub and grill license. We are confident that you will be very satisfied with the services that we offer.

We are a new corporation that will be opening for operations as soon as we complete the licensing period. If you have questions, please contact us. The ownership group will be excited to answer any and all questions, we can be reached at 634-1901. When you call, please be patient since we are very busy getting ready for this new venture.

Thank you for your time with this matter and do not forget that we will look forward to answering any and all questions that you might have of us. Again, thank you from The Suite.

Sincerely,

The Suite
Shad Griffith
President

Financial Statement for Liquor License Applicants

Applicant: THE SOITE LLC

Date: 11 / 1 / 12

Assets

Current Assets

Cash	\$ <u>8,000</u>
Investments	\$ _____
Inventory	\$ <u>10,000</u>
Prepaid Expenses	\$ _____
Other Current Assets	\$ <u>7,000</u>
TOTAL CURRENT ASSETS	\$ <u>25,000</u>

Fixed Assets

Land	\$ _____
Buildings	\$ _____
Leasehold Improvements	\$ _____
Furniture & Fixtures	\$ _____
Other Fixed Assets	\$ _____
TOTAL FIXED ASSETS	\$ <u>0</u>
Less- Accumulated Depreciation	\$ _____
NET FIXED ASSETS	\$ _____
TOTAL ASSETS (LINE 1)	\$ <u>25,000</u>

Liabilities

Current Liabilities

Accounts Payable	\$ _____
Note Payable	\$ _____
Accrued Expenses (Interest, taxes, wages, etc.)	\$ _____
Installment Loans Payable	\$ <u>25,000</u>
Other Current Liabilities	\$ _____

TOTAL CURRENT LIABILITIES (Line 2) \$ 25,000

Capital

Capital

Sole Proprietor	\$ _____
Corporation	
Capital Stock	\$ <u>25,000</u>
Treasury Stock	\$ _____
Retained Earnings	\$ _____
Partnership	
Name of Partner	Capital
_____	\$ _____
_____	\$ _____
_____	\$ _____
_____	\$ _____

TOTAL CAPITAL (LINE 3) \$ 25,000

TOTAL LIABILITIES & CAPITAL

(Line 2 = Line 3) Must equal line 1

\$ _____



JEA
M1
SCALE 1/8"=1'
5/13/09

STATE OF WYOMING
Office of the Secretary of State

I, MAX MAXFIELD, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF ORGANIZATION

The Suite LLC

Accordingly, the undersigned, by virtue of the authority vested in me by law, hereby issues this Certificate.

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **2nd** day of **November, 2012**.



Filed Date: 11/02/2012



Secretary of State

By: _____ Barb Boyer

COMMERCIAL LEASE AGREEMENT

1901 Central Avenue

Cheyenne, WY 82001

Letter of Intent;

WHEREAS "LESSOR," 3/J Ranch Enterprises, LLC, agrees to lease the real property commonly known as "The Suite," located at 1901 Central Ave. Cheyenne, Wyoming, to "LESSEE," The Suite, LLC, under the following terms.

1. LESSOR and LESSEE are limited liability companies organized under the laws of the State of Wyoming and each of LESSOR and LESSEE represents and warrants that it is in good standing under the laws of the State of Wyoming and has full power and authority to enter into this Commercial Lease Agreement (hereinafter the "Lease").
2. PREMISES. The LESSOR leases to LESSEE the Premises hereby referred to as "The Suite" improvements and the appurtenances located on the first floor of the Premises, restaurant and bar area located on street level of the premises, including the kitchen, access via building lobby to Women's Restroom located on upper mezzanine, elevator, and a portion of the basement area.
3. LESSOR acknowledges LESSEE will operate "The Suite" for sale of alcohol throughout the Premises.
4. TERM AND RENEWAL. The term of this Lease will begin on October 1, 2012 and ending September 30, 2022. Should LESSEE fail to give 120 day written notice to LESSOR of LESSEE'S intent to vacate on or before September 30, 2022 this Lease shall automatically renew for a period of 5 years beginning on October 1, 2022 and ending on September 30, 2027. LESSOR or LESSEE shall give the other party no less than 90 days written notice prior to September 30, 2027 if it does not wish to continue the Lease after the first renewal term in which event the Lease shall terminate on September 30, 2027.
5. USE. LESSEE agrees and hereby releases, agrees to indemnify and hold harmless LESSOR and each of its employees from any and all liability arising from LESSEE'S use of the Premises
6. Security Deposit. To be Determined
6. USE. LESSEE agrees and hereby releases, agrees to indemnify and hold harmless LESSOR and each of its employees from any and all liability arising from LESSEE'S use of the Premises

LESSEE will be solely responsible for keeping the Sidewalk Cafe clean and in presentable condition and for maintaining current city licensing because the Sidewalk Cafe is on City of Cheyenne property, LESSEE shall maintain the Sidewalk Cafe in strict compliance with City of Cheyenne ordinances.

8. LEASE PROVISION. LESSOR acknowledges and agrees that LESSEE may sell alcoholic or malt beverage on the Premises in accordance with W.S. 12-4-103(a)(iii). LESSEE'S license is not held by any person employed by the state or a city, town or county as a law enforcement officer or who holds office as a law enforcement officer through election.

LESSEE shall follow all City of Cheyenne ordinances including City of Cheyenne Ordinance Nos. 3705 and 3649 where applicable.

9. Other terms and conditions to be determined

Signed effective.

LESSOR:

3/J Ranch Enterprises, LLC & Teresa L. Miller, Trustee of the Teresa L. Miller Revocable Trust Dated
September 14, 2007

BY:

 9/26/2012
Teresa L. Miller, Member and Trustee

LESSEE:

The Suite, LLC

BY:

 9-26-12
Shad Griffith, Owner Shadow Corp.